

25SMCV03714 25SMCV03714

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-09-24

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

September

24, 2026

CASE NUMBER

25SMCV03714

MOTIONS

Motions

to be Relieved as Counsel

MOVING PARTY

Bobby

Benjy of Benjy Law Corporation

OPPOSING PARTY

(none)

MOTION

Bobby Benjy of Beny Law Corporation,
counsel for Plaintiffs Saraly Anavim (aka Linda Anavim) and Dr. Elliot Anavim
("Counsel") moves to be relieved as counsel, citing an irreconcilable breakdown
of the attorney-client relationship. The
motions are unopposed.

LEGAL

STANDARD

Code of Civil Procedure section 284 provides "[t]he attorney in an
action or special proceeding may be changed at any time before or after
judgment or final determination as follows: 1. Upon the consent of both client
and attorney, filed with the clerk, or entered in the minutes; 2. Upon the
order of the court, upon the application of either client or attorney, after
notice from one to the other."

Procedural Requirements

California Rules of Court, rule 3.1362, requires:

(1) the motion must be made on
form MC-051; (subd. (a));

(2) it must be accompanied by
a declaration on form MC-052 stating why the motion is brought under Code of
Civil Procedure section 284(2) instead of a consent brought under section
284(1); (subd. (c));

(3) a proposed order on form
MC-053 must be lodged with the court, specifying all hearing dates scheduled in
the action or proceeding, including the date of trial, if known; (subd. (e));
and

(4) The documents must be
served on the client and on all parties that have appeared in the case. (subd.
(d).)

If

the notice is served by mail or electronic service, it must be accompanied by a declaration indicating that the address served is the current address, or in the case of service by mail, that it was served on the last known address and a more current address could not be located after reasonable efforts within 30 days before filing the motion. (Ibid.) The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court.”

(Ibid.)

Substantive Requirements

Rules of Professional Conduct, rule 1.16(a) outlines the reasons a lawyer must withdraw from representation of a client:

(1) the

client is bringing an action, conducting a defense, asserting a position in litigation, or taking an appeal, without probable cause and for the purpose of harassing or maliciously injuring any person;

(2) the

representation will result in violation of the Rules of Professional Conduct or the State Bar Act;

(3) the

lawyer's mental or physical condition renders it unreasonably difficult to carry out the representation effectively; or

(4) the

client discharges the lawyer.

Rules of Professional Conduct, rule 1.16(b) outlines the reasons a lawyer may withdraw from representation of a client:

(1) the

client insists upon presenting a claim or defense in litigation, or asserting a position or making a demand in a non-litigation matter, that is not warranted under existing law and cannot be supported by good faith argument for an extension, modification, or reversal of existing law;

(2) the

client either seeks to pursue a criminal or fraudulent course of conduct or has used the lawyer's services to advance a course of conduct that the lawyer reasonably believes was a crime or fraud;

(3) the

client insists that the lawyer pursue a course of conduct that is criminal or fraudulent;

(4) the

client by other conduct renders it unreasonably difficult for the lawyer to carry out the representation effectively;

(5) the

client breaches a material term of an agreement with, or obligation, to the lawyer relating to the representation, and the lawyer has given the client a reasonable warning after the breach that the lawyer will withdraw unless the client fulfills the agreement or performs the obligation;

(6) the

client knowingly and freely assents to termination of the representation;

(7) the

inability to work with co-counsel indicates that the best interests of the client likely will be served by withdrawal;

(8) the

lawyer's mental or physical condition renders it difficult for the lawyer to carry out the representation effectively;

(9) a

continuation of the representation is likely to result in a violation of these rules or the State Bar Act; or

(10)

the lawyer believes in good faith in a proceeding pending before a tribunal that the tribunal will find the existence of other good cause for withdrawal.

DISCUSSION

Counsel has filed forms MC-051, MC-052, and MC-053 for each client. The attorney declarations (MC-052) indicate that the motions were filed instead of filing consents because:

An irreconcilable breakdown in the attorney-client relationship has occurred, and the client has, by conduct, rendered it unreasonably difficult for counsel to carry out the representation effectively. (Cal. Rules of Prof. Conduct, rule 1.16(b)(4).) Counsel gave the client advance written notice of counsel's intention to seek relief and an opportunity to avoid the necessity of this motion by executing a substitution of attorney; the client has not done so, and a consent under Code of Civil Procedure section 284(1) is therefore unavailable. Counsel states the grounds in general terms, as permitted by California Rules of Court, rule 3.1362(c), in order to preserve the client's confidences and secrets. (Bus. & Prof. Code, section 6068, subd. (e)(1); Cal. Rules of Prof. Conduct, rule 1.6.) Should the Court require a further showing, counsel respectfully requests leave to make that showing in camera.

(MC-052 at ¶ 2.) As such, the Court finds that the motions comply with the Rules of Professional Conduct, rule 1.16(b)(4).)

The proofs of service indicates each of the requisite forms were served electronically on counsel for Defendant and on the clients by mail.

However, the attorney declarations indicate that the clients' addresses have been confirmed current via a public records search. This is insufficient to demonstrate that the attorney has confirmed with the client that the addresses are current. Rather, that is indicative that counsel has been unable to locate a more current address for the client after making various efforts, pursuant to paragraph 3(b)(2) of form MC-052, yet Counsel provided the information under paragraph 3(b)(1). Despite the technical, procedural issue, the Court finds that Counsel has substantially complied with the Rules of Court.

CONCLUSION

AND ORDER

Having found the Motions both procedurally and substantively proper,
the Court Grants Counsel's Motions to be Relieved as Counsel.

Counsel must serve the signed orders (forms MC-053), which shall
include information about all future hearings and proceedings noticed by any
party, or ordered by the Court, on the clients and all other parties who have
appeared in the action, within 10 days of the date of this Order, and file the
proofs of service of such. Counsel will
remain the attorney of record for Plaintiffs Saraly Anavim (aka Linda Anavim)
and Dr. Elliot Anavim until Counsel files the requisite proofs of service. (See Cal. Rules of Court, rule
3.1362(e).)

Further, to ensure that the Court's records are updated following the
filing of the proofs of service, Counsel shall contact the Court to advise that
the proofs of service has been filed.

DATED: September 24, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court